

4 April 2023
Juror off sick

CONTENTS

Housekeeping

Tuesday, 4 April 2023
(10.30 am)

(Delay in proceedings)

(10.40 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, I don't know whether you have been given the information that a juror has rung in saying that they are not fit to attend. They left a message because it was before anyone was manning the telephone, and so contact is trying to be made to see what the nature of the problem is and whether -- how long it's likely to last. In other words, is it going to be more than just a day?

MR JOHNSON: Yes.

MR JUSTICE GOSS: So I think in relation to that, we'll just have to wait until we get more information, but as far as I can see, there is no prospect of us doing anything today, I'm afraid.

MR JOHNSON: No.

MR JUSTICE GOSS: Professor Arthurs is on the link, I can see him there, so he can hear what's being said.

I think, rather than engaging in a round table discussion about what the potential difficulties are so far as he is concerned and so on, that can be done behind the scenes. It'll be much more efficient and much more appropriate.

MR JOHNSON: Yes.

MR JUSTICE GOSS: So unless either of you have any comments you wish to make, that's it.

MR MYERS: No, my Lord, thank you.

MR JOHNSON: No, my Lord. Just so that Professor Arthurs hears, we'll ring him later this morning, if that's acceptable, and get some dates from him and work to accommodate his availability.

MR JUSTICE GOSS: Exactly, thank you.

Mr Myers, thank you for the documents.

MR MYERS: We'll provide paper copies before the end of this term so your Lordship has those available.

MR JUSTICE GOSS: There's no need to provide a paper copy of the actual application because I will print that off myself, but I haven't had a chance yet to look at how big the volume of materials is. I'm not proposing to print that off.

MR MYERS: We'll provide a copy for that. Its size belies actually what it is that's referred to. There are discrete aspects of it referred to but it seemed appropriate that your Lordship had the material in any event, and my learned friends as well, so we have access to everything. By no means do we go to all of that which has been provided to the court.

MR JUSTICE GOSS: No, but thank you very much. I obviously now have the opportunity to consider that.

We will leave the court open. I'm going to keep the jurors here for the time being until we have further information.

MR JOHNSON: Yes. So far as the day's business is concerned, plainly there's not going to be any evidence heard, but there is a pressing issue between us, which we may invite your Lordship to consider or at least consider part of it or principles relating to it. So could we ask that your Lordship is available?

MR JUSTICE GOSS: I will be, I'll be here all day. No doubt about it.

MR JOHNSON: Thank you very much.

MR JUSTICE GOSS: So would you kindly tell the jury that...

We may have some up-to-date information.

(Pause)

Contact has now been established. Not feeling well, temperature, hopes to be fit for tomorrow, but will be contacted this afternoon to see how she is and a decision will therefore be made later this afternoon about tomorrow.

MR JOHNSON: Yes.

MR JUSTICE GOSS: I can't do any better than that.

MR JOHNSON: No. Those symptoms are entirely in keeping with the way I felt last week and all of us have been feeling, so it won't be a surprise.

MR JUSTICE GOSS: There are quite a lot of viruses about at the moment, including, of course, COVID. But there are lots of other coronaviruses as well.

MR JOHNSON: There are. Take your pick.

MR JUSTICE GOSS: So could you tell the jury, please, that as they will know, one of their number is not well enough to attend today, so they will not be required today. They will be contacted by the jury officer later in the afternoon in the usual way about tomorrow.

Thank you very much.

As far as Ms Letby is concerned, she will obviously remain here.

MR MYERS: Yes, my Lord, we would be grateful for that.

MR JUSTICE GOSS: If there's going to be a hearing, she should be here in relation to the matter Mr Johnson's referred to.

MR MYERS: We can use some of the time to meet with her as well, which will be of assistance.

MR JUSTICE GOSS: You can confer with her. Thank you very much indeed.

(10.48 am)

(The court adjourned until a time and date to be determined)